THE MARINE ENVIRONMENT PROTECTION COMMITTEE RECALLING Article 38(a) of the Convention on the International Maritime Organization concerning the functions of the Marine Environment Protection Committee conferred upon it by international conventions for the prevention and control of marine pollution from ships, RECALLING ALSO article 16 of the International Convention for the Prevention of Pollution from Ships, 1973, as modified by the Protocols of 1978 and 1997 relating thereto (MARPOL), which specifies the amendment procedure and confers upon the appropriate body of the Organization the function of considering amendments thereto for adoption by the Parties, - which specifies the amendment procedure and confers upon the appropriate body of the Organization the function of considering amendments thereto for adoption by the Parties, RECALLING FURTHER regulation 13 of MARPOL Annex VI, which makes the Technical Code on Control of Emission of Nitrogen Oxides from Marine Diesel Engines (hereafter "NO x Technical Code 2008") mandatory under that Annex, HAVING CONSIDERED, at its eighty -third session, draft amendments to the NOx Technical Code 2008 concerning the use of multiple engine operational profiles for amarine diesel engine, including clarifying engine test cycles, as appropriate, approved at its eighty-second session and duly circulated in accordance with article 16(2)(a) of MARPOL, 1 ADOPTS, in accordance with article 16(2)(d) of MARPOL, amendments to the NO x Technical Code 2008, the text of which is set out in the annex to the present resolution; 2 DETERMINES, in accordance with articles 16(2)(f)(ii) and (iii) of MARPOL, that the amendments shall be deemed to have been accepted on 1 September 2026 unless prior to that date not less than one third of the Parties or Parties the combined merchant fleets of which - amendments shall be deemed to have been accepted on 1 September 2026 unless prior to that date not less than one third of the Parties or Parties the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the world'smerchant fleet have communicated to the Organization their objection to the amendments; 3 INVITES the Parties to note that, in accordance with article 16(2)(g)(ii) of MARPOL, the said amendments shall enter into force on 1 March 2027 upon their acceptance in accordance with paragraph 2 above; 4 ALSO INVITES the Parties to note that the said amendments shall enter into effect as follows:
(a) for anew individual engine or aparent engine of an engine family or engine group that has not been previously certified, the said amendments apply no later than 1 January 2028, based on the issue date of the EIAPP Certificate for the individual engine or parent engine; RESOLUTION MEPC.397(83) (adopted o